

HOUSE BILL 1349

By Littleton

AN ACT to amend Tennessee Code Annotated, Title 38;
Title 53; Title 63 and Title 68, relative to
psychotropic drugs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 38-7-109, is amended by adding the following as a new subsection:

(c)

(1)

(A) If a county medical examiner's office or regional forensic center is conducting an autopsy on a decedent who is suspected to have committed a mass shooting that resulted in the deaths of four (4) or more individuals, then the county medical examiner or regional forensic center shall consult such decedent's treating mental health professional or primary care physician, if known and reasonably able to be identified through the decedent's next of kin, to obtain information regarding the decedent's psychotropic drug use.

(B) The county medical examiner shall test the decedent for the presence of any drugs, including psychotropic drugs.

(2)

(A) The county medical examiner's office or regional forensic center shall disclose the drug use of the decedent to the University of Tennessee's health science center and to the department of health.

(B) The county medical examiner's office or regional forensic center shall not disclose any identifying information including the decedent's name or social

security number when disclosing the drug use of the decedent to the University of Tennessee's health science center and to the department of health.

(3) The University of Tennessee's health science center shall study the drug interactions between the psychotropic drugs and any other drugs that were present in the decedent's system as provided by the county medical examiner as described in subdivision (c)(2)(A).

(4) The University of Tennessee's health science center shall submit quarterly reports of all data obtained pursuant to this section to the chair of the health and welfare committee of the senate and the chair of the house of representatives committee having jurisdiction over health-related matters.

(5) As used in this subsection (c), "psychotropic drug" means a medication prescribed for the treatment of mental or behavioral health conditions or a drug prescribed for any condition that exercises a direct effect upon the central nervous system and that is capable of influencing and modifying mood, perceptions, and behavior, including:

(A) Agents for control of mania and depression;

(B) Antidepressants;

(C) Antipsychotics;

(D) Anxiolytics;

(E) Hypnotics;

(F) Mood stabilizers;

(G) Hormonal medication with the primary goal of altering a person's physical appearance and sexual characteristics existing at the person's birth;

(H) Psychomotor stimulants; and

(I) Stimulants.

(6) The county medical examiner, regional forensic center, department of health, and the University of Tennessee's health science center must follow all relevant state and federal privacy laws related to the implementation of this section.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.